

YOU MIMIC AI – PRIVACY POLICY

This Privacy Policy sets out our commitment to protecting the privacy of personal information provided to us, or otherwise collected by us, offline or online, including through our website, services, AI avatar production services, content generation services and related platforms (Services). In this Privacy Policy, we, us or our means You Mimic Pty Ltd trading as You Mimic AI, ABN 39 695 563 627.

This Privacy Policy should be read together with our Terms of Business and any applicable proposal, quotation, statement of work, invoice or subscription plan.

Personal information

The types of personal information we may collect about you include your name, organisation, role, contact details, billing information, communications with us, information about the services you request or receive, and information you provide through our website, social media pages, forms, enquiries, meetings, avatar capture sessions or service platforms.

Because we provide AI avatar, voice and content generation services, we may also collect images, video, audio, voice recordings, likeness information, performance recordings, scripts, prompts, uploaded content, brand materials, metadata and other information needed to create, manage, host, support or deliver avatars and related content.

We may collect technical and usage information, including device and browser information, IP address, approximate location, page views, session data, cookies, log data, platform usage and interactions with our website or services.

We may collect personal information directly from you, from your organisation, from authorised representatives, from third party service providers, or from platforms that you connect to or use in connection with the Services.

Sensitive information and avatar data

Sensitive information is personal information that attracts a higher level of protection under the Australian Privacy Principles. It may include health information, biometric information or biometric templates, and other information protected by law.

Where our Services involve avatar capture, voice capture or the creation of a digital likeness, we may process face, body, voice or performance information for the purpose of creating, personalising, managing and supporting the relevant avatar or content. We only collect and use this information where we have consent, where it is reasonably necessary for the Services, or where otherwise permitted by law.

We do not use your avatar, voice, likeness or content to train systems for other clients unless you have expressly agreed to that use.

Collection and use of personal information

We may collect, hold, use and disclose personal information to provide and manage the Services, create and deliver avatar and content outputs, onboard clients, process payments, communicate with you, provide support, maintain internal records, improve our website and Services, manage security and access controls, confirm authority and consent, prevent misuse, comply with legal obligations, resolve disputes and protect our rights.

We may also use your contact details to send marketing or service updates where permitted by law. You may opt out of marketing communications at any time using the unsubscribe function or by contacting us.

Disclosure of personal information to third parties

We may disclose personal information to our employees, contractors, related entities, professional advisers, payment processors, IT providers, data storage providers, hosting providers, AI generation providers, analytics providers, marketing providers, support providers and other third party service providers who assist us to deliver, operate, secure or improve the Services.

We may also disclose personal information to regulators, courts, tribunals, law enforcement, prospective purchasers of our business or assets, or other third parties where required or permitted by law, where necessary to enforce our rights, or where you direct or consent to the disclosure.

Some third party providers may store, transfer or access personal information outside Australia. Where we disclose personal information overseas, we will take reasonable steps to require that recipients handle it in a manner consistent with the Australian Privacy Principles, unless an exception applies under the Privacy Act 1988 (Cth).

Third party platforms and linked services

Our Services may rely on third party platforms, AI tools, hosting infrastructure, payment services, analytics tools, integrations or links to external websites. Those providers may collect and handle personal information under their own terms and privacy policies.

We are not responsible for the privacy practices of third party websites or platforms that we do not control, and you should review their privacy policies before providing personal information to them.

Your rights and controlling your personal information

By providing personal information to us, you understand that we will collect, hold, use and disclose it in accordance with this Privacy Policy. You do not have to provide personal information to us, but if you do not, we may not be able to provide the relevant Services.

If you provide personal information about another person, including a person whose image, voice, likeness or performance is used in an avatar, you are responsible for ensuring you have authority and consent to provide that information to us.

You may request access to, or correction of, personal information we hold about you. You may also ask us to restrict how we use your personal information, withdraw consent where we rely on consent, or unsubscribe from marketing communications.

We may need to verify your identity before responding to a request. We may refuse a request where permitted by law, but will explain our reasons where required.

Storage, security and retention

We are committed to protecting personal information from misuse, interference, loss and unauthorised access, modification or disclosure. We use reasonable physical, technical and organisational safeguards, which may include access controls, encryption where appropriate, secure storage, restricted permissions and provider due diligence.

No internet transmission, digital platform, AI service or storage system is completely secure. You should take care when sending information to us and must keep any account credentials secure.

We keep personal information for as long as reasonably required for the purposes described in this Privacy Policy, including to provide the Services, maintain avatar outputs where applicable, comply with legal obligations, resolve disputes, enforce agreements and protect our rights. Where information is no longer required, we will take reasonable steps to destroy or de identify it, subject to legal, technical, backup and archival requirements.

Cookies and web beacons

We may use cookies on our Site from time to time. Cookies are text files placed in your computer's browser to store your preferences. Cookies, by themselves, do not tell us your email address or other personally identifiable information. However, they do allow third parties, such as Google and Facebook, to cause our advertisements to appear on your social media and online media feeds as part of our retargeting campaigns. If and when you choose to provide our Site with personal information, this information may be linked to the data stored in the cookie.

We may use web beacons on our Site from time to time. Web beacons (also known as Clear GIFs) are small pieces of code placed on a web page to monitor the visitor's behaviour and collect data about the visitor's viewing

of a web page. For example, web beacons can be used to count the users who visit a web page or to deliver a cookie to the browser of a visitor viewing that page.

Links to other websites

Our Site may contain links to other websites. We do not have any control over those websites and we are not responsible for the protection and privacy of any personal information which you provide whilst visiting those websites. Those websites are not governed by this Privacy Policy.

Amendments

We may, at any time and at our discretion, vary this Privacy Policy by publishing the amended Privacy Policy on our Site. We recommend you check our Site regularly to ensure you are aware of our current Privacy Policy.

Complaints and disputes

If you believe that we have breached the Australian Privacy Principles, or you have a complaint about the way we have handled your personal information, please contact us using the details set out below. Please include your name, contact details and enough information about your complaint for us to investigate it.

We will consider and investigate your complaint and may contact you if we require further information. We aim to respond within 30 days of receiving your complaint and will advise you of the outcome of our review.

If you are not satisfied with our response, you may refer your complaint to the Office of the Australian Information Commissioner (OAIC) at www.oaic.gov.au or by telephone on 1300 363 992.

Contact us

For any questions, requests, complaints or notices, please contact us at:

You Mimic Pty Ltd trading as You Mimic AI

ABN 39 695 563 627

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Web: youmimic.com

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Last updated: [insert date]